



DEPARTMENT OF THE NAVY

NAVAL SURFACE WARFARE CENTER
CRANE DIVISION
300 HIGHWAY 361
CRANE INDIANA 47522-5001

IN REPLY REFER TO:

J&A Number: CR-23395
Code: 0231

JUSTIFICATION AND APPROVAL FOR USE OF OTHER THAN FULL AND OPEN COMPETITION

1. Contracting Activity.

The Naval Sea Systems Command, Naval Surface Warfare Center, Crane Division (NSWC-CR), Expeditionary Sensors Contracts Branch (Code 0231).

2. Description of the Action Being Approved.

Award of a five (5) year firm-fixed-price, indefinite-delivery, indefinite-quantity, supply contract on a sole source basis for supply and repair services in support of several sensor systems variants within the family of Raytheon Multi-spectral Targeting Systems (MTS). The award of a five year Indefinite Delivery Indefinite Quantity (IDIQ) to Moog Inc., Government Entity (CAGE) Code 99932, 1213 N. Main St., Blacksburg, VA. 24060-3127; Doing Business As: Moog Components Group.

3. Description of Supplies/Services.

This procurement is for purchase and repair of Slip Rings, Azimuth and Elevation Brushes, Seals, Elevation Twist Capsules, provisioned item ordering spare parts, associated specialized test equipment and the Test Teardown and Evaluation (TT&E) and Repair.

These items will be utilized in the repair and sustainment of the Raytheon family of Electro Optic/Infrared (EO/IR) Systems, also known as MTS. This family of EO/IR systems includes the AN/AAS-44C, AN/AAS-52B, AN/DAS-1A, AN/DAS-3, AN/DAS-4, AN/DAS-5, AN/AAS-53, AN/ZSQ-2, MTS-C and future MTS derivatives, hereinafter referred to as EO/IR Systems. These systems provide Intelligence Surveillance and Reconnaissance (ISR), Detection, Identification and targeting capability in day/night operations for both manned and unmanned platforms. These internal components are key elements of the MTS and have been integrated, test qualified and documented as part of the MTS approved configuration by the Original Equipment Manufacturer (OEM) (Raytheon).

The estimated total value of this acquisition is \$6,943,861.

The Government's minimum needs have been verified by the certifying Technical and Requirements Personnel.

Estimated Dollar Value

	FY24-29
Total	\$6,943,861

4. Statutory Authority Permitting Other Than Full and Open Competition.

10 U.S.C. 3204(a)(1), Only one responsible source and no other supplies or services will satisfy agency requirements.

5. Rationale Justifying Use of Cited Statutory Authority.

The items/services being procured under this J&A are in direct support of the replacement and repair of the MTS, which has been deployed on various aircraft such as the [REDACTED]

[REDACTED]. The MTS OEM, Raytheon Company, subcontracted design and production of the cited components to Moog Components Group.

The Government has been purchasing the MTS EO/IR systems from Raytheon for many years and has deployed hundreds of systems in multiple manned and unmanned platforms. The majority of prior requirements for slip rings and repairs were covered by sole source contracts/orders placed with Raytheon Company, as the overall MTS system OEM. The requirement for slip rings comprises approximately three (3) percent of the cost/purchase price or repair of a MTS system. In an effort to shorten repair turnaround time, the Government seeks to purchase supplies and services required for the sustainment of the MTS directly from the OEM subcontractor, Moog Components Group. The Government further intends to develop Organic Depot testing and screening for some limited repairs.

Manufacture and/or repair of the cited components by a source other than Moog Components Group is not practicable. Moog Components Group designed, developed, qualified and manufactured the cited components to meet the Government's performance specification, and to interface with Raytheon's MTS system hardware and software/firmware elements.

The Government does not own design specifications adequate to allow for competition and Moog Components Group has advised that they do not intend to license or sell its proprietary data to the Government or to any entity. Based on their unique system design, test and component interface knowledge and experience, Moog Components Group is the only contractor possessing the capability to provide the required supplies and services in the timeframes required.

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable.

A Request For Information (RFI) of the planned contract published on SAM.gov on 05 SEPTEMBER 2023. No responses have been received to date.

This action was also synopsized on SAM.gov on 18 SEPTEMBER 2023. One response was received. The response was a clarification inquiry on the contract currently performing incumbent contract in which the Contract Specialist's response answered the inquiry and no further communications were received thereafter. Any responses from interested sources received prior to contract award will be considered.

Based upon the market research, and for the reasons discussed in Section 5, it is not practicable for any vendor other than Moog Components Group to provide the required supplies and services.

7. Determination of Fair and Reasonable Cost.

The Contracting Officer has determined the anticipated cost to the Government of the supplies/services covered by this J&A will be fair and reasonable.

8. Actions to Remove Barriers to Future Competition.

For the reasons set forth in Paragraph 5, NSWC-CR has no plans at this time to compete future contracts for the types of supplies/services covered by this document. If another potential source emerges, NSWC-CR will assess whether competition for future requirements is feasible.

As this is a follow-on for supplies and services previously awarded on a non-competitive basis, in accordance with DFARS PGI 206.304(a)(S-70)(i), the prior J&A was provided to the approval authority for review. Approval of this J&A signifies the approval authority has made the determination required by DFARS PGI 206.204(a)(S-70)(ii).

CERTIFICATIONS AND APPROVAL

TECHNICAL/REQUIREMENTS CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein are complete and accurate to the best of my knowledge and belief.

Technical Cognizance:

[REDACTED]

Requirements Cognizance:

[REDACTED]

[Note that this page includes certification that the acquisition planning documents are complete and accurate. If a single individual has cognizance over both technical and requirements information included in the J&A, use of only one signature line is encouraged and "Technical Cognizance:" and Requirements Cognizance:" above the signature lines may also be deleted.]

LEGAL SUFFICIENCY REVIEW

I have determined this Justification is legally sufficient.

[REDACTED]

CONTRACTING OFFICER CERTIFICATION

I certify that this Justification is accurate and complete to the best of my knowledge and belief.

[REDACTED]

Upon the basis of the above justification, I hereby approve, as Competition Advocate (CA), the solicitation of the proposed procurement(s) described herein using other than full and open competition, pursuant to the authority of 10 U.S.C. 3204(a)(1)(Only one responsible source and no other supplies or services will satisfy agency requirements).

[REDACTED]

Lisa A. Good, Chief of the Contracting Office

4/15/24
Date